

Research Paper:

The Delay in the Formation of Pakistan's Objective Resolution and Constitution: A Study of Constitutional Challenges

Abstract:

This research paper explores the reasons behind the two-year delay in the formulation of the Objective Resolution of Pakistan, despite it being the foundation of Pakistan's constitution and the circumstances that took Pakistan 9 years to frame its very first constitution.

Introduction:

The importance of the objective resolution of 1949 was to serve as the preamble to Pakistan's first constitution, which was adopted in 1956 and has been used again and again. It provided the guiding principles which influenced the subsequent development of Pakistan's law. The **Objective Resolution** is often regarded as the ideological compass of Pakistan.

Following independence, it took three Governor Generals, four Prime Ministers, two constituent assemblies (1947-1954 & 1955-1956), and nine years of protracted constitution making process to produce the first constitution of Pakistan in 1956. Pakistan had no constitution at the time of partition. Therefore, according to the Indian Independence Act 1947, the Government India Act of 1935 with partial modification was adopted as a temporary constitution of Pakistan until the framing of Pakistan's own constitution. The Govt. India Act of 1935 was not able to be adopted for a long time, for being difficult and complex in nature. This led to the constitution making of Pakistan, which was met with political instability, debate on federal form of government, provincial representation, death of main leaders, challenges in minority representation which led to delay.

Factors Leading to Delay in Making of Objective Resolution and Constitution Of 1956:

1. Political Instability:

The early years of Pakistan's independence were marked by political instability, particularly after the deaths of **Muhammad Ali Jinnah** in 1948 and **Liaquat Ali Khan** in 1951. Jinnah's leadership had provided a unifying force for the nascent state, but his

absence created a vacuum in political leadership. After Liaquat Ali Khan's assassination, successive governments lacked the strength and consensus needed to drive the constitution-making process forward. Political infighting and a lack of clear leadership contributed to the prolonged delay in translating the ideals of the Objective Resolution into a constitution.

2. Challenges In Minority Representation:

Pakistan was got in the name of Islam; it was difficult task to define Islam in the Constitution because there lived people belonging to various sects and it was not easy job to unite all the people to the same Islamic ideology.

3. Ethnicity and Ethnic Conflict in Pakistan:

After the death of Quaid-i-Azam Muhammad Ali Jinnah and Prime Minister Khan Liaquat Ali Khan, political leaders who assumed power were politically weak and could not develop strong democratic political system which was necessary for equal representation of all ethnic identities of Pakistan. The basic structure of Pakistan is that of a federation comprising federating units (called provinces). After 9 years the constitution of 1956 was framed. The 1956 constitution had 3 lists of powers such as federal, provincial and concurrent³⁵. This constitution remained unable to resolve the problem of provincial autonomy because people of East Pakistan and deprived provinces of west Pakistan were not happy with Punjabi domination.

4. Language Issue:

Another issue which caused Constitution making process delayed in Pakistan was linguistic problem because the people in the East Pakistan were in majority and wanted Bengali an official language of Pakistan while the people in the West Pakistan comprised of various regional languages and wanted their languages to be given a significant importance. Still there was another elite class who wanted Urdu to be the official language of Pakistan. Disputes over representation, federalism, and language policy became critical points of contention, further complicating the constitution-making process.

5. Debate between Religious or Secular State:

Although the 1949 objective resolution envisaged an official role for Islam as the state religion, the state retained most of the laws that were inherited from the secular British legal code that had been enforced by the British Raj since the 19th century. In 1956, the state adopted the name of the "Islamic Republic of Pakistan", declaring Islam as the official religion, but did not take any further measures to adopt Islamic laws. The challenge of reconciling religious principles with democratic governance further delayed the process.

Conclusion:

The delay in the implementation of Pakistan's first constitution can be attributed to a combination of political, ideological, and institutional factors. The ideological aspirations outlined in the Objective Resolution were not easily reconciled with the practical realities of governance in a diverse and divided state. The eventual adoption of the 1956 Constitution represented a compromise in implementing Islamic values in the form of government with several factors that affected delay in framing up the foundation of constitution and consequently the constitution.

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